

KAVANAUGH, J., concurring in part

Fourteenth Amendment incorporates the Sixth Amendment jury trial right against the States. See *Duncan v. Louisiana*, 391 U.S. 145, 149 (1968); *id.*, at 166 (Black, J., concurring); see also *Malloy*, 378 U.S., at 10–11; see generally *Timbs v. Indiana*, 586 U.S. 146 (2019); *McDonald v. Chicago*, 561 U.S. 742 (2010). When *Apodaca* was decided, it was already an outlier in the Court’s jurisprudence, and over time it has become even more of an outlier. As the Court today persuasively explains, the original meaning of the Sixth and Fourteenth Amendments and this Court’s two lines of decisions—the Sixth Amendment jury cases and the Fourteenth Amendment incorporation cases—overwhelmingly demonstrate that *Apodaca*’s holding is egregiously wrong.<sup>6</sup>

---

<sup>6</sup>Notwithstanding the splintered 4–1–4 decision in *Apodaca*, its bottom-line result carried precedential force. In the American system of *stare decisis*, the result and the reasoning each independently have precedential force, and courts are therefore bound to follow both the result and the reasoning of a prior decision. See *Seminole Tribe of Fla. v. Florida*, 517 U.S. 44, 67 (1996); *Randall v. Sorrell*, 548 U.S. 230, 243 (2006) (opinion of BREYER, J.); *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U.S. 573, 668 (1989) (Kennedy, J., concurring in judgment in part and dissenting in part). The result of *Apodaca* was that state criminal juries need not be unanimous. That precedential result has been followed by this Court and the other federal and state courts for the last 48 years. To be sure, *Apodaca* had no majority opinion. When the Court’s decision is splintered, courts follow the result, and they also follow the reasoning or standards set forth in the opinion constituting the “narrowest grounds” of the Justices in the majority. See *Marks v. United States*, 430 U.S. 188, 193 (1977). That *Marks* rule is ordinarily commonsensical to apply and usually means that courts in essence heed the opinion that occupies the middle-ground position between (i) the broadest opinion among the Justices in the majority and (ii) the dissenting opinion. See *United States v. Duvall*, 740 F.3d 604, 610–611 (CA DC 2013) (Kavanaugh, J., concurring in denial of rehearing en banc). On very rare occasions, as in *Apodaca*, it can be difficult to discern which opinion’s reasoning has precedential effect under *Marks*. See also *Nichols v. United States*, 511 U.S. 738, 745–746 (1994) (analyzing *Baldasar v. Illinois*, 446 U.S. 222 (1980) (*per curiam*)). But even when that happens,